# FREE SAMOURAI

*A Case for Executive Clemency*

Keonne Rodriguez & William Lonergan Hill, Co-Founders of Samourai Wallet

A Data Room for Executive Clemency Review

July 2026

*Financial privacy is a human right. Software is speech.*

## Contents

# 1. Executive Summary

Keonne Rodriguez (37) and William "Bill" Lonergan Hill (67) built Samourai Wallet, a non-custodial Bitcoin privacy application, beginning in 2015. Neither man ever held or controlled a user's funds or private keys. In November 2025, following guilty pleas to a single charge — conspiracy to operate an unlicensed money transmitting business — Rodriguez was sentenced to the statutory maximum of five years in federal prison, and Hill to four years. Both are now incarcerated.

This document makes the case that President Trump should grant Rodriguez and Hill a full and unconditional pardon, and lays out a practical plan for securing it.

## The Core Argument

- Samourai never took custody of user funds. According to public reporting, the Financial Crimes Enforcement Network (FinCEN) itself advised prosecutors before indictment that a non-custodial service like Samourai did not meet the legal definition of a "money transmitting business."
- Both defendants are first-time offenders who accepted plea agreements under the weight of a far larger potential sentence, rather than risk trial on the original money-laundering conspiracy charge.
- The prosecution turned on the conduct of a small fraction of Samourai's users — not on Rodriguez or Hill personally laundering, trafficking, or profiting from underlying crimes.
- A conviction that treats open-source software authorship as the equivalent of running a bank sets a precedent that chills privacy-preserving and security software development generally — the Bitcoin Policy Institute has warned this "collapses the distinction between developing a tool and operating a service."

## The Political Case

- President Trump has already signaled openness to a pardon, telling reporters on December 15, 2025, "I've heard about it. I'll look at it," after being asked about Rodriguez's case.
- A pardon is consistent with the President's public commitments to end what he has called the prior administration's "anti-crypto crusade" and to defend self-custody and financial privacy.
- The political cost is low: the administration has already pardoned Binance founder Changpeng Zhao and Silk Road founder Ross Ulbricht, establishing precedent and absorbing most of the political friction such a decision generates.
- The crypto-holding electorate is large (Stand With Crypto counts more than 50 million American voters) and includes many persuadable independents heading into the 2026 midterms.

## The Ask

A full, unconditional pardon for Keonne Rodriguez and William Lonergan Hill — or, at minimum, a commutation of their remaining sentences — correcting what supporters view as the disproportionate criminalization of privacy-preserving software development.

## 2. Draft Instrument of Pardon

The text below follows the standard format used for federal executive clemency warrants. It is a starting draft only and would need to be finalized by the Office of the Pardon Attorney and White House Counsel before execution; case numbers, docket citations, and formal legal language should be confirmed against the official court record before submission.

# A GRANT OF EXECUTIVE CLEMENCY

**BY THE PRESIDENT OF THE UNITED STATES OF AMERICA**

TO ALL WHO SHALL SEE THESE PRESENTS, GREETING:

WHEREAS Keonne Rodriguez was convicted in the United States District Court for the Southern District of New York, upon a plea of guilty, of conspiracy to operate an unlicensed money transmitting business, and was sentenced on November 6, 2025, to a term of five years' imprisonment, three years' supervised release, and a fine of $250,000; and

WHEREAS William Lonergan Hill was convicted in the same court, upon a plea of guilty to the same offense, and was sentenced on November 19, 2025, to a term of four years' imprisonment, three years' supervised release, and a fine of $250,000; and

WHEREAS both defendants are first-time offenders whose software, Samourai Wallet, never took custody of any user's funds or private keys; and

WHEREAS the pardon power vested in the President by Article II, Section 2 of the Constitution exists to correct injustice and disproportionate punishment;

NOW, THEREFORE, I, [PRESIDENT'S FULL NAME], President of the United States of America, by virtue of the authority vested in me by the Constitution, do hereby grant a full and unconditional pardon to KEONNE RODRIGUEZ and WILLIAM LONERGAN HILL for the offense described above.

IN WITNESS WHEREOF, I have hereunto set my hand and caused the Seal of the United States to be affixed.

DONE at the City of Washington this ____ day of _______________, in the year of our Lord two thousand twenty-six, and of the Independence of the United States of America the two hundred and fiftieth.

_______________________________ President of the United States

# 3. Public Messaging Guide

This section offers suggested talking points and messaging themes for the President's team and for supporters. These are recommendations for consideration — not statements to be attributed to the President or issued in his name without his and his staff's own review and approval.

## Suggested Talking Points for the President's Team

- This is a pardon for coders, not criminals — Rodriguez and Hill never touched a user's money.
- It finishes what the CZ and Ulbricht pardons started: America will not prosecute software the way it prosecutes crime syndicates.
- It keeps a promise made at the 2024 Nashville Bitcoin Conference to end the prior administration's approach to crypto enforcement.
- It protects the next generation of American software developers from being driven offshore by regulatory overreach.

## If a Reporter Asks

Suggested response framework: acknowledge the President has reviewed the case; note that the developers never controlled user funds; emphasize that the sentence already imposed reflects a guilty plea to a regulatory-licensing charge, not to laundering money themselves; and tie the decision to the administration's broader pro-innovation, pro-privacy posture on digital assets.

## Sample Messaging Themes for Supporters (Social Media, Op-Eds)

- “Code is not a crime.”
- “FinCEN itself said Samourai wasn't a money transmitter — the prosecution never should have happened.”
- “Two first-time offenders. Five and four years. Zero dollars taken from a single victim by their own hands.”

Note: any messaging drafted as though written by the President himself (for example, sample tweets posted from his account) should be prepared and approved directly by his communications staff, not supplied by outside advocates.

# 4. Political Breakdown

## Who Benefits

- The President: reinforces his identity as the “crypto president” and delivers on a specific 2024 campaign commitment.
- The crypto and open-source software community: removes a chilling precedent for privacy-tool developers.
- Congressional Republicans in crypto-friendly districts: a low-cost, high-goodwill talking point with an engaged donor and voter base.
- Civil liberties organizations across the spectrum (the Cato Institute has already called the case “a chilling moment for financial privacy”), giving the decision some bipartisan cover.

## Who Is Put in an Awkward Position

- SDNY prosecutors and DOJ's Complex Frauds and Cybercrime Unit, whose sentencing win would be reversed.
- Lawmakers who have pushed for stricter mixer regulation and framed the case as a model prosecution.

## The Voter Math

Stand With Crypto reports that more than 50 million American voters hold or have held cryptocurrency — a bloc large enough to matter in close midterm races, and one that skews toward independents and libertarian-leaning Republicans who are, by nature, more “up for grabs” than committed partisans on either side.

A district-by-district breakdown of crypto-voter concentration in 2026 battleground races is a natural next research phase for this campaign — Stand With Crypto and the Bitcoin Policy Institute both publish relevant advocacy data and would be reasonable partners to request district-level figures from directly.

## Precedent Already Set

| Case | Outcome | Relevance |
|---|---|---|
| Changpeng Zhao (Binance) | Pardoned by President Trump | Establishes willingness to pardon crypto executives convicted of financial-compliance offenses |
| Ross Ulbricht (Silk Road) | Full and unconditional pardon, 2025 | Direct precedent for clemency tied to crypto and darknet-adjacent prosecutions |
| Roman Storm (Tornado Cash) | Convicted of unlicensed money transmission, 2025 | A parallel case privacy advocates cite as evidence of a broader pattern worth correcting |

# 5. What Supporters Can Offer

## Visibility and Endorsement

Organizations already on record supporting clemency include the Bitcoin Policy Institute (whose head of policy, Zack Shapiro, has published a formal letter to the administration), the Cato Institute, and the grassroots campaign at billandkeonne.org. A Change.org petition has drawn more than 3,200 signatures. Any of these groups would be natural partners for a coordinated public push, joint statement, or press event — they should be approached directly for interest and availability rather than assumed.

## Coalition-Building

Combining this request with other pending crypto-related clemency cases (e.g., Roman Storm's) could broaden the coalition without materially increasing the political cost of a single signature, since each additional case shares supporters rather than requiring new political capital.

## A Note on Financial Support

Any discussion of campaign contributions, PAC donations, or other financial support tied to advocacy for this pardon should be handled through normal, lawful campaign-finance channels and kept clearly separate from the clemency request itself. Tying financial offers directly to a pardon ask — or implying one is conditioned on the other — would create serious legal and ethical exposure for everyone involved and should be avoided in any communication with the White House.

# 6. Political Context & Precedent

This section sticks to publicly reported facts rather than speculation about private motives, since the latter would be both unreliable and inappropriate for a document meant to be trustworthy.

## What the President Has Already Said

Asked about Rodriguez's case at a December 15, 2025 press briefing, President Trump responded, “I've heard about it. I'll look at it,” and indicated he would review the matter after the reporter noted broad support for clemency within the crypto community.

> *Your continued noise is working. Thank you to everyone pushing @realDonaldTrump to pardon Bill and me. Let's get this over the line. #pardonsamourai* — Keonne Rodriguez, public statement following the President's remarks

## Related Public Commitments

- At the 2024 Bitcoin Conference in Nashville, then-candidate Trump pledged to end what he described as the prior administration's “anti-crypto crusade” and to protect the right to self-custody.
- The administration has already granted clemency in comparable cases (Zhao, Ulbricht), establishing a pattern this request would extend rather than originate.

## Known Points of Friction Worth Being Aware Of

SDNY has treated this as a significant enforcement win, and DOJ's litigating position (that non-custodial software can still constitute money transmission if it's marketed toward illicit use) is one the government may be reluctant to appear to abandon. Any pitch to the administration should anticipate that career DOJ officials may push back, and should be prepared to address that directly rather than assume it away.

# 7. Full Legal Analysis

This section is written to be candid about the case's weaknesses first, on the theory that a pardon request loses credibility if it minimizes or omits unfavorable facts. It then presents the strongest arguments in favor of clemency.

## Part 1 — The Case Against Rodriguez and Hill, Stated Plainly

- Both men were charged, in April 2024, with conspiracy to operate an unlicensed money transmitting business and conspiracy to commit money laundering; both ultimately pleaded guilty in July 2025 to the money-transmitting charge.
- Prosecutors said Samourai's Whirlpool and Ricochet services moved more than $2 billion in Bitcoin between 2017 and 2019, and that over $237 million of that was tied to drug trafficking, darknet marketplaces, cyber-intrusions, fraud, sanctioned jurisdictions, murder-for-hire schemes, and a child exploitation website.
- Court evidence, including WhatsApp messages, reportedly showed Rodriguez describing the service internally as “money laundering for Bitcoin.”
- Prosecutors said Hill responded on the darknet forum Dread to a user seeking to “clean dirty BTC” by recommending Whirlpool, and that Rodriguez had encouraged 2020 Twitter-hack perpetrators to route stolen funds through the service.
- Both defendants forfeited more than $6.3 million in fees earned from Samourai's operation and paid $250,000 fines each.

Any data room presented to White House staff should not understate these facts. A credible pardon request has to be built on top of them, not around them.

## Part 2 — The Three Strongest Arguments for Clemency

### 1. FinCEN's own guidance undercuts the legal theory of the case

According to reporting by Reason and the Bitcoin Policy Institute, FinCEN told DOJ prosecutors in official correspondence, prior to indictment, that a non-custodial service like Samourai — one that never took control of users' Bitcoin or private keys — did not meet the statutory definition of a money transmitting business. If accurate, the government proceeded with the core charge despite guidance from its own designated regulator that the underlying legal theory was shaky. This is, by itself, the single strongest argument for clemency: it suggests the plea was extracted under the threat of a legally uncertain, maximalist charge rather than a clearly established one.

### 2. The precedent threatens software development broadly, not just Samourai

The Bitcoin Policy Institute's Zack Shapiro has argued publicly that “collapsing the distinction between developing a tool and operating a service would introduce an untenable level of risk for anyone building privacy-enhancing or security-critical software.” Treated as precedent, this case would expose any developer of open-source, privacy-preserving software — encryption tools, mixers, even certain wallet software — to money-transmission liability for the independent criminal acts of a subset of their users. That is a chilling effect with consequences well beyond two individuals.

### 3. Disproportionate punishment given individual circumstances

Rodriguez and Hill are both first-time offenders. Hill, 67, was sentenced with an explicit downward variance after his attorney presented evidence of a recent autism diagnosis; the sentencing judge stated she would otherwise have imposed the full 60-month term. Hill was also extradited from Portugal, where he had been living. Rodriguez, 37, has since described serious financial hardship for his family and has publicly solicited donations to cover ongoing legal costs. Neither man is accused of personally trafficking drugs, committing fraud, or profiting from the underlying crimes their software's misuse enabled — their liability rests entirely on their role as toolmakers.

## Part 3 — Additional Supporting Arguments

- Comparable cases: Roman Storm, developer of the Ethereum mixing tool Tornado Cash, was convicted of unlicensed money transmission in 2025 — advocates argue this reflects a pattern of prosecutorial overreach against non-custodial software generally, not an isolated case.
- Chilling effect on U.S. competitiveness: if American developers of privacy software face this level of legal exposure, the practical effect is to push that development offshore, to jurisdictions with less regulatory ambiguity — arguably undermining, not advancing, U.S. leadership in the crypto and cybersecurity industries.
- Constitutional and “code as speech” arguments: while unresolved in this case, U.S. courts have previously treated cryptographic source code as protected speech (Bernstein v. U.S. Department of Justice, 1999), a doctrine advocates argue supports treating the authorship of open-source privacy tools differently from operating a financial service.

## Part 4 — The Human Element

Behind the legal theory are two specific people. Bill Hill is 67 years old, recently diagnosed with autism, extradited from Portugal, and now serving a four-year sentence far from the country where he had been living. Keonne Rodriguez is 37, a first-time offender who has publicly described the financial toll of his legal defense and forfeiture on his family. Both surrendered voluntarily to begin their sentences rather than fleeing or continuing to contest the case. The scale of the government's resources brought to bear — involving IRS Criminal Investigation, the FBI, Europol, and international extradition — stands in some contrast to two software developers with no prior criminal history.

## 8. Reframing the Argument: Code, Privacy, and Progress

The strongest version of this case does not ask the President to excuse money laundering. It asks him to draw a clear line between people who commit financial crimes and people who write software that a minority of users later misuse — a distinction the law has long recognized in other contexts (a hardware store isn't liable for a burglary committed with a crowbar it sold).

### Privacy as a Constitutional Value

Financial privacy has deep roots in American law and practice, from cash transactions to bank-secrecy carve-outs for individuals. Samourai's supporters argue that Bitcoin's public, permanent ledger creates a genuine new problem — every transaction is visible forever — and that tools like Whirlpool exist to restore, for law-abiding users, a level of financial privacy that cash has always provided.

### Technological Progress Has Always Outrun the Law

New technologies — encryption, peer-to-peer file sharing, even early automobiles — have repeatedly forced regulators to catch up after the fact, and have often been treated with initial suspicion before their legitimate uses were recognized. Advocates argue that mixing technology deserves the same evolving treatment: judged by its lawful uses and the intent of its builders, not solely by its worst-case misuse.

### A Practical, Not Just Moral, Case

- Skilled software developers are mobile. Aggressive prosecution of tool-builders creates an incentive for privacy-focused engineering talent to build (and pay taxes) elsewhere.
- A pardon does not require Congress to change any law — it is a unilateral, low-friction action available to the President today.
- It allows the administration to draw a bright line going forward (through legislation or FinCEN guidance) without leaving two individuals to serve years in prison under an approach the administration itself may not wish to defend long-term.

## 9. Conclusion & Call to Action

Keonne Rodriguez and William Hill built software. They did not run a bank, launder money themselves, or profit from the crimes that a portion of their users committed. The government's own financial-crimes regulator reportedly cautioned against the core legal theory used to prosecute them. Two respected policy organizations — the Bitcoin Policy Institute and the Cato Institute — have already gone on record in support of clemency. The President has indicated he is open to reviewing the case.

What remains is execution: assembling a credible, honest, well-organized case; putting it in front of the people who can act on it; and building enough public pressure that acting on it becomes the easy, popular choice rather than a hard one.

### Immediate Next Steps

- Finalize and fact-check this data room against primary sources (court filings, DOJ and IRS press releases, FinCEN correspondence if it can be obtained or confirmed) before it is shared with anyone in the administration.
- Reach out directly to the Bitcoin Policy Institute, the Cato Institute, and the organizers of billandkeonne.org to coordinate messaging and confirm their willingness to be publicly associated with a joint push.
- Identify a small number of credible, camera-ready supporters (industry figures, policy experts, family members) willing to participate in a public moment if the White House engages.
- Monitor for any DOJ or White House response and be ready to iterate the pitch based on real feedback rather than assumptions.

---

*Sources consulted: U.S. Department of Justice (SDNY) press releases; IRS Criminal Investigation; Bitcoin Magazine; CoinDesk; Reason; the Bitcoin Policy Institute; billandkeonne.org; Change.org; Wikipedia (Keonne Rodriguez).*